

Business (Merchant) Subscriber Agreement

Effective date: [EFFECTIVE DATE]

Draft for legal review — not yet in force.

This Business Subscriber Agreement ("**Agreement**") is between [COMPANY LEGAL NAME] ("**Cirqlback**") and the business that registers for a paid or trial plan ("**Business**," "**you**"). It supplements the [Terms of Service](#) and [Privacy Policy](#), which are incorporated by reference. If this Agreement conflicts with the Terms for your business use, this Agreement controls.

1. Plans, trials, and add-ons

- **Plans.** Cirqlback offers a free **Starter** trial and paid **Core** and **Pro** subscriptions, plus optional **add-ons** (e.g., hosted business page, map priority, advanced analytics, contest/scavenger builder, custom branding). Current prices and features are shown at checkout and in the price sheet; prices are set by Cirqlback and enforced server-side.
- **Trial.** The Starter trial is free for its stated period. We may offer a conversion discount before it ends. Trials may be modified or discontinued.
- **Changes.** We may change plans, features, and prices prospectively. Material price changes affecting your renewal will be communicated in advance where required by law.

2. Billing, auto-renewal, and cancellation

- **Authorization.** You authorize Cirqlback and **Stripe** to charge your payment method for your selected plan and add-ons, plus applicable taxes, on a recurring **monthly or annual** basis.
- **Billing date.** For **monthly** plans, your subscription and any add-ons are charged on the **10th of each service month** (the month the service covers). **Annual** plans are charged on their annual renewal date. [For counsel: confirm proration/first-charge handling for mid-month sign-ups.]
- **Auto-renewal.** Subscriptions **renew automatically** at the then-current price until you cancel. You may cancel at any time from your account or by contacting [SUPPORT EMAIL]; cancellation takes effect at the end of the current billing period.
- **Refunds.** Except where required by law or expressly stated, fees are non-refundable. [REFUND WINDOW: state your actual policy, e.g., "14-day money-back guarantee on a first paid subscription."]
- **Late or failed payment.** If payment for a service month is not successfully completed by the **end of that month**, we will notify you by email and your **business dashboard will be locked and your Cirqlback taps will stop working** until your balance is brought current. If your account remains unpaid for **90 days**, your service will be **suspended**, which may include taking down your hosted page, campaigns, and listings. You remain responsible for all amounts owed, and reactivation may require settling the outstanding balance.
- **Taxes.** Prices exclude taxes unless stated. You are responsible for applicable sales, use, or similar taxes; we may collect and remit them where required.

3. Your responsibilities as a Business

- **Honor your offers.** You are solely responsible for fulfilling the rewards, discounts, and offers you publish, and for the accuracy of your listings, hours, and hosted-page content.
- **Lawful promotions.** You are responsible for compliance with laws that apply to your promotions and business (including sweepstakes/contest rules, alcohol regulations, pricing/advertising laws, and consumer-protection laws).
- **Customer data.** Data you access through Cirqlback about your customers must be used only to operate your loyalty program and in compliance with the Privacy Policy and applicable law. Do not sell it or use it for unrelated purposes.
- **NFC tags & hardware.** You are responsible for placing and maintaining your tags/QR codes. Cirqlback is not responsible for lost, damaged, or tampered tags.

4. Multi-store and funded campaigns

If you join or host a **multi-store campaign** with a **funded reward**:

- The **host** business fronts the reward cost; participating stores reimburse a **tap-weighted share** as described in the Service.
- By joining, you **consent** to your tap-weighted cost share and to the settlement terms shown at join time.
- **Settlements** are calculated by the Service and reflected in statements. You authorize collection or payout of your share via Stripe or as otherwise agreed.
- Cirqlback **facilitates** these settlements as a convenience and is not a party to the underlying arrangement between businesses, is not a bank or money transmitter, and is not liable for a participant's failure to fund or reimburse. *(Flag for counsel: confirm money-movement/facilitation structuring.)*

5. Payouts (Stripe Connect)

Where you receive funds (e.g., as a funding host), payouts are made through **Stripe Connect** to your connected account. Payouts are generally issued on the **15th of each month** for amounts that have been settled and cleared as of that date; timing may vary with Stripe processing. You must complete Stripe's onboarding and verification and are subject to Stripe's Connected Account Agreement. Cirqlback is not responsible for delays or holds imposed by Stripe or arising from your failure to complete verification.

6. Content license and ownership

You retain ownership of your business content. You grant Cirqlback a worldwide, royalty-free license to host, display, and use it to operate and promote the Service (including showing your hosted page and campaigns to customers). You represent you have all rights to the content you provide, including any images and badge art.

7. Suspension and termination

We may suspend or terminate your account for non-payment, breach, fraud, abuse, or to protect the Service or others. You may cancel at any time (Section 2). On termination, your paid features end; your hosted page and campaigns may be taken down. Amounts owed remain due. Sections intended to survive (payments, licenses, disclaimers, liability limits, indemnity) survive.

8. Warranties, disclaimers, and liability

The Service is provided "as is." Cirqlback does not guarantee any level of customers, taps, revenue, or business results.

Cirqlback's total liability under this Agreement is limited as stated in the [Terms of Service](#), Section 10. You will indemnify Cirqlback as stated in the Terms, including for claims arising from your promotions, offers, or misuse of customer data.

9. General

This Agreement is governed by the law of **[GOVERNING LAW STATE]**, with disputes resolved as stated in the Terms of Service. If any provision is unenforceable, the rest remains in effect. We may update this Agreement prospectively with notice where required.

10. Contact

Billing and account questions: **[SUPPORT EMAIL]** · **[COMPANY LEGAL NAME]**, **[BUSINESS ADDRESS]**.

This document is a draft and does not constitute legal advice. Have it reviewed by a licensed attorney before use.